The Honorable Lauren King
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UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF WASHINGTON
AT SEATTLE
UNITED STATES DISTRICT COURT

MARK HOFFMAN, on behalf of himself and all others similarly situated,

Plaintiffs,

v.

4 PILLAR CONSULTING, LLC, aka 4 PILLAR CONSULTING HOLDINGS, LLC, aka 4 PILLAR CONSULTING SYNDICATION, LLC, and DOES 1-10,

Defendants.

WESTERN DISTRICT OF WASHINGTON
CASE NO. 2:26-cv-03102-LK

AT SEATTLE

DEFENDANT'S MOTION TO DISMISS PLAINTIFF'S PUTATIVE CLASS ACTION COMPLAINT

MARK HOFFMAN, on behalf of himself and all others similarly situated,
Plaintiffs,
v.
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NOTED FOR MOTION CALENDAR: NOVEMBER 6, 2026

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Action Filed: July 24, 2026
Date Removed: August 31, 2026

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D. Plaintiff Does Not Plausibly Allege That 4 Pillar Lacked Internal DNC Procedures Before Initiating the Subject Communications (Counts 2 and 3).
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INTRODUCTION

While it is long on conclusions and legal citations, Plaintiff's nine-count putative class action Complaint (see Dkt. 1-1) is woefully short on actual plausible facts meeting the bedrock Iqbal/Twombly federal pleading standard. In it, Plaintiff Mark Hoffman ("Plaintiff") alleges, in a wholly conclusory and inconsistent fashion, that either 4 Pillar Consulting LLC ("4 Pillar") and/or unidentified "Doe" defendants—parties which the Complaint improperly conflates and refers to collectively throughout as "Defendants"—violated certain "Do Not Call" ("DNC") provisions of the federal Telephone Consumer Protection Act (i.e., 47 U.S.C. § 227, et seq., the "TCPA") and various Washington analog statutes. These claims rest squarely on ill-described phone calls and text messages that Plaintiff concludes were initiated either by 4 Pillar and/or by countless "unknown" third party "agents" to three different supposedly "residential" cell phone numbers he purportedly owns, without his consent. See, e.g., Dkt. 1-1, ¶¶ 14, 15, 17, 25, 30. And based on these poorly-pled allegations, Plaintiff seeks to represent six overlapping and redundant putative classes. Id., ¶ 37. As demonstrated herein, however, Plaintiff's Complaint fails to properly plead a plausible claim for relief under federal pleading standards, and thus it is ripe for dismissal in its entirety, on at least the following grounds:

First, as a threshold matter, the Complaint fails to comply with Fed. R. Civ. P. 8 and 10, as it lumps together, conflates, and fails to differentiate between the parties, the non-parties, the facts, and the claims alleged in an impermissible "shotgun" fashion. Courts in the Ninth Circuit, including in this District, have consistently dismissed such facially-defective pleadings on this basis alone. This Court should rule similarly here and likewise dismiss Plaintiff's entire Complaint for this reason.

Second, the entire Complaint should also be dismissed under Fed. R. Civ. P. 12(b)(6) because Plaintiff fails to state any plausible claim for relief against 4 Pillar or to plead actual facts supporting such a claim, in accordance with federal pleading standards. For example, it is well-settled nationally that all TCPA plaintiffs must first adequately plead a theory of liability against the defendant (i.e., direct or vicarious liability), or they face a complete dismissal of any TCPA claim under Rule 12(b)(6). Applying this steadfast rule requires Plaintiff here to plausibly allege, with sufficient non-conclusory factual support, that 4 Pillar: (i) itself, and not a third party, "physically" placed or sent each of the

TCPA claim under Rule 12(b)(6). Applying this steadfast rule requires Plaintiff here to subject communications directly to him (*i.e.*, direct TCPA liability), or (ii) had a common law agency plausibly allege, with sufficient non-conclusory factual support, that 4 Pillar: (i) itself, and not relationship with a third party who did physically place or send the subject communications (*i.e.*, a third party, "physically" placed or sent each of the subject communications directly to him vicarious TCPA liability). At the same time, it is equally well-established that merely taking an (i.e., direct TCPA liability), or (ii) had a common law agency relationship with a third party equivocating "either/or" pleading approach and concluding that the "defendant and/or its agents" who did physically place or send the subject communications (i.e., vicarious TCPA liability). placed or sent the subject communications is insufficient to plausibly allege any theory of TCPA

Third, Plaintiff also failed to plead sufficient facts supporting other essential elements liability, without more. As that is all Plaintiff has done here, and since his state law claims suffer from of his various asserted claims, as required under Rule 12(b)(6), which also mandates a complete the same fatal defect, his entire Complaint is doomed to dismissal under Rule 12(b)(6). dismissal of his Complaint. For instance, for his claims in Counts 1 through 3, Plaintiff invokes

Third, Plaintiff also failed to plead sufficient facts supporting other essential elements of his the TCPA's implementing DNC regulations: 47 C.F.R. § 64.1200(c)(2) and 47 C.F.R. § various asserted claims, as required under Rule 12(b)(6), which also mandates a complete dismissal 64.1200(d). Count 1 invokes the former regulation, which inter alia restricts certain "telephone of his Complaint. For instance, for his claims in Counts 1 through 3, Plaintiff invokes the TCPA's calls" (specifically "telephone solicitations" or "telemarketing" calls) made to "residential" implementing DNC regulations: 47 C.F.R. § 64.1200(c)(2) and 47 C.F.R. § 64.1200(d). Count 1 phone numbers properly registered on the National DNC Registry. Counts 2 and 3 are invokes the former regulation, which *inter alia* restricts certain "telephone calls" (specifically duplicative and together invoke the latter regulation, which reflect the TCPA's "internal" DNC "telephone solicitations" or "telemarketing" calls) made to "residential" phone numbers properly procedural requirements. registered on the National DNC Registry. Counts 2 and 3 are duplicative and together invoke the latter

Fourth, Plaintiff's Complaint also suffers from several other fatal legal defects. For regulation, which reflect the TCPA's "internal" DNC procedural requirements. In this regard, example, Plaintiff invokes the TCPA's Caller ID regulations found in 47 C.F.R. § 64.1601(e) Plaintiff's Complaint omits sufficient non-conclusory facts supporting a plausible inference *inter alia* for his claim Count 4, which a majority of federal courts have held do not afford consumers a that (i) each of the subject communications qualifies as a "telephone solicitation" or "telemarketing" private cause of action under the TCPA. Consequently, Count 4 must be dismissed on this call as defined by the TCPA's regulations or he qualifies as a "residential telephone subscriber" under additional basis. the TCPA, either of which warrants dismissal of Counts 1 through 3; (ii) he himself registered all of

Lastly, the private cause of action afforded under the TCPA for purported violations of the three subject phone numbers that he claims were called on the National DNC Registry, which the TCPA's implementing DNC regulations invoked for Counts 1 through 3 is found in 47 further warrants dismissal of Count 1; or (iii) 4 Pillar lacked internal DNC procedures prior to the U.S.C. § 227(c)(5)—a provision which, on its face, applies only to "telephone calls" (i.e., voice transmission of the alleged communications, which is the only possible legal basis for a violation of calls) and not to all forms of communication to or from a telephone, like text messages, as the internal regulations, and which further warrants dismissal of Counts 2 and 3. As the authorities myriad courts have correctly held when analyzing and applying the plain language of the cited herein show, federal courts routinely dismiss such ill-pled TCPA claims on these grounds; and statutory text. Therefore, none of the text messages of which Plaintiff complains here can Plaintiff's state law claims in Count 5 through 8 have similar elements and thus suffer from the same legally support his TCPA DNC claims. (and other) deficiencies. Thus, Plaintiff's entire Complaint fails for these additional reasons. And

again, merely regurgitating the statutory text, as Plaintiff did here, will not suffice to avoid a dismissal.

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RELEVANT ALLEGATIONS

Also as to his "table," Plaintiff characterizes it as "a non-exhaustive list of phone calls and text messages the Plaintiff received in 2025 and 2026, from the Defendants, each of them attempting to sell 4 Pillar's funding services." *Id*. Yet, Plaintiff's "table" provides little (if any) factual detail about the content of these calls or the identity of the callers (*i.e*., if it was 4 Pillar itself or an "unknown agent"), beyond perhaps (i) his repeated conclusory "descriptions" of "[a] sales call from 4 Pillar" or (ii) an additional conclusory statement that "[e]ach caller initiated the call for the purpose of encouraging the Plaintiff to purchase financial services from 4 Pillar." *Id*. ¶¶ 30, 31. Nor does Plaintiff provide the content of any purported text messages he allegedly received, and just likewise baldly concludes that each text was "[a] sales text from Trenton at 4 Pillar" and was "sent to encourage the Plaintiff to purchase financial services from 4 Pillar." *Id*. ¶¶ 30, 32.

Plaintiff similarly concludes, with no factual support, that "Defendants always transmitted inaccurate caller ID information on each of the solicitation calls they initiated to the Plaintiff." *Id*. ¶ 34. But Plaintiff does not provide any description of what information was actually displayed on his Caller ID (or on which phone) that would support his conclusion that it was "inaccurate." Plaintiff further alleges that he "notified 4 Pillar about the unwanted and illegal phone calls and text messages and demanded they stop them." *Id*. ¶ 35. However, his "table" only vaguely concludes that "Mr. Hoffman used a reasonable means to send 4 Pillar a do-not-call request" at some point and that "[t]hey received Mr. Hoffman's request on March 13, 2026." *Id*. ¶ 30. Yet, Plaintiff does not provide any factual detail as to what this request said, to whom it was sent, or what "means" he used—let alone plead any facts supporting his conclusions that the means he used were "reasonable" or that 4 Pillar received it. The only other "stop" request mentioned in the Complaint is where Plaintiff allegedly responded to a text message with "Trenton, stop calling me." *Id*. But Plaintiff does not allege that he received any telephone calls after this supposed exchange.

As shown below, these allegations come nowhere close to meeting federal pleading standards.

APPLICABLE LEGAL STANDARDS

It is axiomatic that "'[d]ismissal under Rule 12(b)(6) is proper when the complaint either (1) lacks a cognizable legal theory or (2) fails to allege sufficient facts to support a cognizable legal

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theory.'" *Cal. Crane Sch., Inc. v. Google LLC*, 2025 WL 2541913, at *1 (9th Cir. Sept. 4, 2025) (quoting *Somers v. Apple, Inc.*, 729 F.3d 953, 959 (9th Cir. 2013)). As to the latter, a "bare assertion" and "conclusory allegation[s]" will not suffice to avoid a dismissal. *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 556–57 (2007). A "formulaic recitation of the elements" of a claim also fails to meet the requisite pleading standard. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). Moreover, under Rule 12(b)(6), this Court must only accept well-pled "factual allegations in the complaint as true and construes the pleadings in the light most favorable to the nonmoving party." *Colony Cove Properties, LLC v. City of Carson*, 640 F.3d 948, 955 (9th Cir. 2011). However, the Court need not "'accept as true allegations that are merely conclusory, unwarranted deductions of fact, or unreasonable inferences'" under this Rule. *Wilson v. Hewlett-Packard Co.*, 668 F.3d 1136, 1145 n.4 (9th Cir. 2012) (quoting *Sprewell v. Golden State Warriors*, 266 F.3d 979, 988 (9th Cir. 2001)); *see also Sacco v. Mouseflow, Inc.*, 2022 WL 4663361, at *2 (E.D. Cal. Sept. 30, 2022) (holding that "the Court need not accept [internally] inconsistent allegations in a complaint as true" under Rule 12(b)(6) either) (citing *Jones v. Pollard*, 2022 WL 706926, at *5 (S.D. Cal. Mar. 9, 2022)).

ARGUMENT

While the TCPA (along with its state counterparts) represents an important remedial statute designed to protect consumers from harassing telemarketers, its remedial purpose does not afford TCPA plaintiffs special pleading deference. This is for good reason, as even the FCC has noted that the TCPA unwittingly spawned a cottage industry of class action litigation, "has strayed far from its original purpose" as a remedial statute, and has "become the poster child for lawsuit abuse" in this country ever since its enactment in 1991. *In re Rules & Regs. Implementing the TCPA*, 30 FCC Rcd. 7961, 8073 (2015). It is against this backdrop, therefore, that federal judges have widely recognized that they must dutifully fulfil their critical "gatekeeping" function under the Federal Rules of Civil Procedure in TCPA cases (particularly in putative TCPA class actions like this one) to ensure that claims have sufficient plausible factual support before subjecting defendants to the high cost of discovery and trial.

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Consequently, federal district courts across the country (including courts in this Circuit in particular) have not hesitated to dismiss TCPA complaints lacking in such requisite facts at the pleadings stage, while still honoring the statute's intended remedial purpose. Plaintiff's similarly-defective Complaint in this case should suffer the same fate for at least the reasons discussed below.

I. The Complaint Is An Improper "Shotgun Pleading" That Violates Rules 8 And 10.

As an initial overarching pleading defect, Plaintiff's entire Complaint should be rejected on its face simply because it violates Rules 8 and 10. Federal pleadings must include "short and plain" statements of the pled claims set forth in "numbered paragraphs, each limited as far as practicable to a single set of circumstances" and, "[i]f doing so would promote

[1] This is not surprising, given that [illegible] violative call, which may be trebled to $1,500 for "willful" or "knowing" violations. *See* 47 U.S.C. § 227(c)(5).

separate count." Fed. R. Civ. P. 8(a), 10(b). Allegations must be "simple, concise, and direct" discovery and trial. Consequently, federal district courts across the country (including courts in this and not mere labels, legal conclusions, or formulaic recitations of elements. Fed. R. Civ. P. 8(d) Circuit in particular) have not hesitated to dismiss TCPA complaints lacking in such requisite facts at (1); Twombly, 550 U.S. at 555-57; Iqbal, 556 U.S. at 681. the pleadings stage, while still honoring the statute's intended remedial purpose. Plaintiff's similarly-

But complaints blurring the lines between the facts and claims to which they apply or defective Complaint in this case should suffer the same fate for at least the reasons discussed below. conflating parties and non-parties are commonly called "shotgun pleadings"; and courts in this

I. The Complaint Is An Improper "Shotgun Pleading" That Violates Rules 8 And 10.

Circuit have routinely held such facially deficient pleadings (particularly in TCPA cases, where As an initial overarching pleading defect, Plaintiff's entire Complaint should be rejected on its the identity of the alleged caller is a critical aspect of the theory of liability element that must be face simply because it violates Rules 8 and 10. Federal pleadings must include "short and plain" adequately pled in every case) are properly dismissed on this basis alone. See, e.g., Barton v. statements of the pled claims set forth in "numbered paragraphs, each limited as far as practicable to Bright Solar Mktg. LLC, 2025 WL 2880136, at *2–4 (W.D. Wash. Oct. 9, 2025); Stark & a single set of circumstances" and, "[i]f doing so would promote clarity, each claim founded on a Ewing v. Stall, 2019 WL 3718878, at *6 (S.D. Cal. Aug. 7, 2019); Ewing v. GoNow Travel separate transaction or occurrence … must be stated in a separate count." Fed. R. Civ. P. 8(a), 10(b). Club, LLC, 2019 WL 3253058, at *1–4 (S.D. Cal. July 19, 2019); Ewing v. Encor Solar, LLC, Allegations must be "simple, concise, and direct" and not mere labels, legal conclusions, or formulaic 2019 WL 277386, at *6 (S.D. Cal. Jan. 22, 2019). In fact, courts in the Ninth Circuit have recitations of elements. Fed. R. Civ. P. 8(d)(1); *Twombly*, 550 U.S. at 555-57; *Iqbal*, 556 U.S. at 681. recognized that a TCPA plaintiff's failure to properly differentiate between the defendants and

But complaints blurring the lines between the facts and claims to which they apply or their conduct is fatal under Rule 8 and 10 because, among other things, such shotgun-style conflating parties and non-parties are commonly called "shotgun pleadings"; and courts in this Circuit allegations do not "provide adequate detail to tell which defendant did what alleged wrong." have routinely held such facially deficient pleadings (particularly in TCPA cases, where the identity Charman v. Desert Lake Grp., LLC, 2024 WL 2000640, at *4 (S.D. Cal. May 6, 2024). All this of the alleged caller is a critical aspect of the theory of liability element that must be adequately pled rings true here.
in every case) are properly dismissed on this basis alone. *See, e.g.*, *Barton v. Bright Solar Mktg. LLC*,

In this case, the Complaint repeatedly lumps together the "Defendants," a term which 2025 WL 2880136, at *2–4 (W.D. Wash. Oct. 9, 2025); *Stark & Ewing v. Stall*, 2019 WL 3718878, is expressly defined to include 4 Pillar and countless "unknown agents," without properly at *6 (S.D. Cal. Aug. 7, 2019); *Ewing v. 8 Figure Dream Lifestyle, LLC*, 2019 WL 1429589, at *5 identifying or distinguishing between what each party or non-party did to violate the law. See, (S.D. Cal. Mar. 29, 2019); *Ewing v. GoNow Travel Club, LLC*, 2019 WL 3253058, at *1–4 (S.D. Cal. e.g., Dkt 1-1, ¶¶ 14, 15, 17, 25, 30, 33, 34, 37, 40, 41, 43, 49-53, 55-59, 61, 72, 74, 76, 78, July 19, 2019); *Ewing v. Encor Solar, LLC*, 2019 WL 277386, at *6 (S.D. Cal. Jan. 22, 2019). In fact, 88-90, 92, 97-102, 105-108, 113-114, 116, 120, 121, 127-129, 131, 137-138. As such, the entire courts in the Ninth Circuit have recognized that a TCPA plaintiff's failure to properly differentiate Complaint should be dismissed on this basis alone. See, e.g., Barton, 2025 WL 2880136, at *4 between the defendants and their conduct is fatal under Rule 8 and 10 because, among other things, ("'A complaint that alleges 'everyone did everything' and prevents defendants from such shotgun-style allegations do not "provide adequate detail to tell which defendant did what alleged understanding the nature of the claims asserted against each of them cannot survive a motion wrong." *Charman v. Desert Lake Grp., LLC*, 2024 WL 2000640, at *4 (S.D. Cal. May 6, 2024) (citing to dismiss.'") (quoting Watt v. HAL Antillen N.V., 2024 WL 4436966, at *2 (W.D. Wash. Oct. *Armstrong v. Investor's Bus. Daily, Inc.*, 2018 WL 6787049, at *10 (C.D. Cal. Dec. 21, 2018) and 7, 2024)); Charman, 2024 WL 2000640, at *4 (ruling similarly).
Hamilton v. El Moussa, 2020 WL 2614625, at *2 (C.D. Cal. Feb. 10, 2020)). All this rings true here.

II. The Entire Complaint Should Also Be Dismissed Under Rule 12(b)(6) Because Plaintiff Fails To Plausibly Allege A Theory Of Liability Against 4 Pillar.

In this case, the Complaint repeatedly lumps together the "Defendants," a term which is expressly defined to include 4 Pillar and countless "unknown agents," without properly identifying or distinguishing between what each party or third-party did to violate the law. *See, e.g.,* Dkt 1-1, ¶¶ 14, 15, 17, 25, 30, 33, 34, 37, 40, 41, 43, 49-53, 55-59, 61, 72, 74, 76, 78, 88-90, 92, 97-102, 105-108, 113-114, 116, 120, 121, 127-129, 131, 137-138. As such, the entire Complaint should be dismissed on this basis alone. *See, e.g., Barton,* 2025 WL 2880136, at *4 ("'A complaint that alleges 'everyone did everything' and prevents defendants from understanding the nature of the claims asserted against each of them cannot survive a motion to dismiss.'") (quoting *Watt v. HAL Antillen N.V.*, 2024 WL 4436966, at *2 (W.D. Wash. Oct. 7, 2024)); *Charman*, 2024 WL 2000640, at *4 (ruling similarly).

II. The Entire Complaint Should Also Be Dismissed Under Rule 12(b)(6) Because Plaintiff Fails To Plausibly Allege A Theory Of Liability Against 4 Pillar.

The actual caller's "identity is a ***necessary*** element of ***all***" TCPA claims, no matter the agency relationship with the person who made the call"—and, of course, the plaintiff must provision invoked. *Gulden v. Consol. World Travel Inc.*, 2017 WL 3841491, at *3 (D. Ariz. Feb. 15, plead sufficient facts, not naked conclusions or equivocations, supporting these allegations to 2017) (emphasis added). Along these lines, as noted above, it is well-settled that, to successfully plead comply with federal pleading standards. Pascal v. Agentra, LLC, 2019 WL 5212961, at *2 any TCPA claim and avoid dismissal under Rule 12(b)(6), all plaintiffs must first "identify" the caller (N.D. Cal. Oct. 16, 2019) (quoting Abante Rooter & Plumbing v. Farmers Grp., Inc., 2018 by adequately alleging a theory of liability under the TCPA. Here, Plaintiff failed to do so. WL 288055, at *4 (N.D. Cal. Jan. 4, 2018)). See also Rogers v. Postmates Inc., 2020 WL More specifically, there are two potential theories of liability under the TCPA that must be 3869191, at *3 (N.D. Cal. July 9, 2020) (citing Thomas v. Taco Bell Corp., 582 F. App'x 678, adequately pled in all cases—direct liability or vicarious liability. This established rule means the 679 (9th Cir. 2014)) (discussing these standards and dismissing); Rogers v. Assurance IQ, defendant "must either (1) directly make the call, or (2) have [a common law] agency relationship LLC, 2023 WL 2646468, at *4-7 (W.D. Wash. Mar. 27, 2023) (discussing key differences with the person who made the call"—and, of course, the plaintiff must plead sufficient facts, not naked between direct and vicarious liability and the standards for pleading same, and dismissing on conclusions or equivocations, supporting these allegations to comply with federal pleading standards. these bases where complaint did not include sufficient factual support). Moreover, a plaintiff's *Pascal v. Agentra, LLC*, 2019 WL 5212961, at *2 (N.D. Cal. Oct. 16, 2019) (quoting *Abante Rooter* failure to plausibly allege either theory warrants dismissal of any TCPA claim in its entirety, *& Plumbing v. Farmers Grp., Inc.*, 2018 WL 288055, at *4 (N.D. Cal. Jan. 4, 2018)). *See also Rogers* regardless of whether the plaintiff has also pled facts supporting other essential elements of that *v. Postmates Inc.*, 2020 WL 3869191, at *3 (N.D. Cal. July 9, 2020) (citing *Thomas v. Taco Bell* claim. See Nelums v. Mandu Wellness, LLC, 2023 WL 5607594, at *9 (D.N.M. Aug. 30, *Corp.*, 582 F.App'x 678, 679 (9th Cir. 2014)) (discussing these standards and dismissing); *Sundstrom* 2023). As shown below, Plaintiff failed to plausibly allege either theory here, and relies solely on *v. Ocean Reef Media LLC,*. 2026 WL 1361646, at *3-5 (W.D. Wash. May 15, 2026) (same); *Rogers* naked conclusions.
v. Assurance IQ, LLC, 2023 WL 2646468, at *4-7 (W.D. Wash. Mar. 27, 2023) (discussing key

differences between direct and vicarious liability and the standards for pleading same, and dismissing on these bases where complaint did not include sufficient factual support). Moreover, a plaintiff's failure to plausibly allege either theory warrants dismissal of any TCPA claim in its entirety, regardless of whether the plaintiff has also pled facts supporting other essential elements of that claim. *See Nelums v. Mandu Wellness, LLC*, 2023 WL 5607594, at *9 (D.N.M. Aug. 30, 2023). As shown below, Plaintiff failed to plausibly allege either theory here, and relies solely on naked conclusions.

As to the former theory of liability, federal district courts across the country have uniformly recognized that direct liability under the TCPA applies only to persons or entities that "make" or "initiate" telemarketing calls, which means to literally "***physically place***" a phone call or send a text message ***directly*** to the plaintiff. *Sheski v. Shopify (USA) Inc.*, 2020 WL 2474421, at *2 (N.D. Cal. May 13, 2020) (dismissing on this basis, citing *In re Dish Network, LLC*, 28 FCC Rcd. 6574, 6583 ¶ 26 (2013)) (emphasis added).[2] This rule has been firmly adopted by district courts across the Ninth Circuit, including by courts in this District. *See, e.g., Rogers v. Assurance*, *Sheski*, *Pascal*, and *Abante*, *supra* (each dismissing TCPA claims under Rule 12(b)(6) on this basis and/or others presented in this Motion); *Frank v. Cannabis & Glass, LLC*, 2019 WL 4855378, at *2 (E.D. Wash. Oct. 1, 2019) (same); *Wick v. Twilio Inc.*, 2017 WL 2964855, at *3 (W.D. Wash. July 12, 2017) (same); *Wilson v. MEDVIDI Inc.*, 2025 WL 2856295, at *4 (N.D. Cal. Oct. 7, 2025) (dismissing on this basis, holding: "Despite Plaintiff's conclusory allegation that the text messages were sent by Defendant, the complaint provides no factual details plausibly suggesting that Defendant actually sent them. There is no discussion, for example, of any investigation Plaintiff conducted to form the understanding that Defendant operated the separate phone numbers from which these messages were sent.").

As to the former theory of liability, federal district courts across the country have uniformly recognized that direct liability under the TCPA applies only to persons or entities that "make" or "initiate" telemarketing calls, which means to literally "physically place" a phone call or send a text message directly to the plaintiff. Sheski v. Shopify (USA) Inc., 2020 WL 2474421, at *2 (N.D. Cal. May 13, 2020) (dismissing on this basis, citing In re Dish Network, LLC, 28 FCC Rcd. 6574, 6583 ¶ 26 (2013)). This rule has been firmly adopted by district courts across the Ninth Circuit, including by courts in this District. See, e.g., Rogers v. Assurance, Sheski, Pascal, and Abante, supra (each dismissing TCPA claims under Rule 12(b)(6) on this basis and/or others presented in this Motion); Frank v. Cannabis & Glass, LLC, 2019 WL 4855378, at *2 (E.D. Wash. Oct. 1, 2019) (same); Wick v. Twilio Inc., 2017 WL 2964855, at *3 (W.D. Wash. July 12, 2017) (same); Wilson v. MEDVIDI Inc., 2025 WL 2856295, at *4 (N.D. Cal. Oct. 7, 2025) (dismissing on this basis, holding: "Despite Plaintiff's conclusory allegation that the text messages were sent by Defendant, the complaint provides no factual details plausibly suggesting that Defendant actually sent them. There is no discussion, for example, of any investigation Plaintiff conducted to form the understanding that Defendant operated the separate phone numbers from which these messages were sent.").

Such is also true of federal district courts nationally. See, e.g., Aaronson v. CHW Grp., Inc., 2019 WL 8953349, at *2-3 (E.D. Va. Apr. 15, 2019) ("[A]t the pleadings stage, [a] plaintiff must allege facts to support his conclusion or belief that defendant is the party that made the calls" and dismissing where plaintiff "failed to plead facts sufficient to support a theory of direct liability under the TCPA"); Metzler v. Pure Energy USA LLC, 2023 WL 1779631, at *6 (S.D.N.Y. Feb. 6, 2023) (holding TCPA plaintiffs must "allege facts from which the Court can plausibly infer that [d]efendant has direct liability, even if it is also plausible that a third party made the call" to avoid dismissal at the pleading stage); Smith v. Direct Building Supplies, LLC, 2021 WL 4623275, at *3 (E.D. Pa. Oct. 7, 2021) (dismissing on this basis where the plaintiff "provide[d] no details specifying how [he] knew [the defendant] in fact [physically] placed these calls").

[2] While various provisions of the TCPA use the terms "make" or "initiate" somewhat interchangeably, courts evaluating and ultimately dismissing conclusory direct TCPA liability claims like Plaintiff's (including those cited above and below, among many others) have uniformly held that "make" or "initiate" in this context means to "physically" place the subject phone calls or send the subject text messages (when texts are legally sufficient to bring a claim, that is). *See also Meeks v. Buffalo Wild Wings, Inc.*, 2018 WL 1524067, at *3-5 (N.D. Cal. Mar. 28, 2018); *Hicks v. Alarm.com*, 2020 WL 9261758, at *5 (E.D. Va. Aug. 6, 2020). This represents a clear majority rule.

Conversely, direct TCPA liability cannot be based on calls by third parties, and generally does not include persons or entities that might merely have some [indirect] role,

however minor, in the causal chain that results in the making of a telephone call." In re Dish Network, LLC, 28 FCC Rcd. at 6583; see also Bennett v. Celtic Ins. Co., 2022 WL 865837, at *2 (N.D. Ill. Mar. 23, 2022) (dismissing complaint where plaintiff alleged "a [TCPA] defendant 'generally does not [physically] initiate calls placed by third-party telemarketers,' even if the third-party had acted on its behalf").

CONCLUSION

For all of these reasons, Plaintiff's entire Complaint should be dismissed under Rule 12(b)(6).

Respectfully submitted,

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*The undersigned certifies that this memorandum **contains 8,390 words**, excluding captions, tables of contents, tables of authorities, signature blocks, required marginal text (e.g., title information and page numbers), or certificates of service, in compliance with the applicable Local Civil Rules, specifically LCR 7(d)(4) and LCR 7(e)(6).*

The undersigned further certifies that, per the Court's procedures, counsel for the parties met and conferred on September 29, 2026 via telephone and on October 1 and October 2, 2026 via email prior to filing this motion and were unable to reach an agreement. Therefore, the motion is opposed.

DATED: October 8, 2026

The undersigned certifies that this memorandum contains 8,390 words, excluding captions, tables of contents, tables of authorities, signature blocks, required marginal text (e.g., title information and page numbers), or certificates of service, in compliance with the applicable Local Civil Rules, specifically LCR 7(d)(4) and LCR 7(e)(6).

DATED: October 8, 2026

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CERTIFICATE OF SERVICE
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I certify that on October 8, 2026, a true and correct copy of the foregoing document was electronically filed with the Court's ECF system to be sent via the electronic notification system to all counsel of record in the above-captioned matter.

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